LABOR RELATIONS

UNITED STATES
POSTAL SERVICE

March 9, 1998

Robert C. Pritchard
Director, Motor Vehicle Services Division
American Postal Workers Union,
AFL-CIO
1300 L Street, NW
Washington, DC 20005-4107

Dear Mr. Pritchard:

This letter is in response to your inquiry of February 4 concerning the Postal Service's position on the availability of an employee to be scheduled for random and follow-up drug testing under the Drug and Alcohol Testing Program.

Employees in the program are scheduled for testing when they are performing safety-sensitive functions which include:

a. all time at an employer or shipper, plant, terminal, facility, or other property, or on any public property; waiting to be dispatched, unless the driver has **been relieved from duty by the employer;**

b. all time spent inspecting equipment as required by Federal Highway Administration regulation; or otherwise inspecting, servicing, or conditioning any commercial motor vehicle at any time;

c. **all time spent at the driving** controls **nf a commercial motor vehicle in** operation;

d. all time, other than driving time, in or upon any commercial motor vehicle, except time spent resting in a sleeper berth;

e. all time loading or unloading a commercial motor vehicle, supervising or assisting in the loading or unloading, tending a vehicle being loaded or unloaded, remaining in readiness to operate the vehicle, or in giving or receiving receipts for shipments loaded or unloaded; and

f. all time repairing, obtaining assistance, or remaining in attendance upon a disabled vehicle.

Designated responsible management officials receive weekly random drug (and alcohol) testing rosters which list employees to be tested during that one week period. The employees on the roster can be scheduled for the test(s) at any time and on any day the employee is on duty performing safety-sensitive functions during that week. This includes any period in which the driver is actually performing, ready to perform, or

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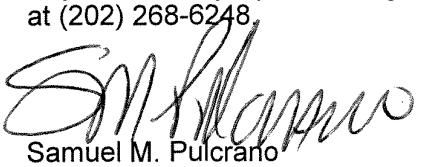
immediately available to perform any safety-sensitive function. Those employees who are required to submit to follow-up testing are also subject to the same availability criteria.

Employees at home while on approved leave should not be required to go to a medical facility to submit to random or follow-up testing for drugs.

If you have any questions regarding the foregoing, please contact Joyce Ong of my staff at (202) 268-6248.



Samuel M. Pulcrano
Manager
Contract Administration (APWU/NPMHU)